

Present: Sh. L.S. Raghav Adv. Senior Standing counsel for SFIO.

Accused Raj Kumar Modi, Jainam Rathore and Surender
in custody (produced through VC)

Accused Vijay Jhindal not produced.

Accused Raj Kumar Modi, Jainam Rathore and Surender
produced in custody through VC. Now they be again produced on
16.4.2021.

Production warrants issued against accused Priyanka Modi,
Mukesh Kumar Modi, Rajeshwar Singh, Vaibhav Lodha, Bharat
Das Vaishnav, Rohit Modi, Bharat Modi, Vivek Purohit, Virender
Modi, Ishwar Singh Sindal and Rahul Virender Modi are received
back duly served. But they have not been produced.

HC Karnidan Singh no. 2027, Reserve Police Line, Jaipur
Commissionerate is present in the Court. He submits that the above
said accused (except Mukesh Kumar Modi and Rahul Virender
Modi who are in Jodhpur Jail) could not be produced as they are on
police remand in FIR no. 218/2019 P.S. Vidhayakpuri, Jaipur. The
accused have not been produced earlier also and it was reported
that they had been taken on police remand. Therefore, notice to
Superintendent Jail Jaipur be issued to file a detailed reply giving
detail of the cases in which they were taken on police remand
along with the period of such remand. The reply should be filed
through some officials of the jail who is able to explain the details.

Accused Mukesh Kumar Modi and Rahul Virender Modi have not been produced from Jodhpur Jail. Ct. Balwan Singh no. 2874, Police Line Commissionerate Jodhpur submits that these accused have been taken on police remand in FIR no. 136/2021, P.S. Mahamandir, District Jodhpur.

Earlier show cause notice to Superintendent Jail Jodhpur was issued vide order dated 19.3.2021 for not producing the accused on that date. No reply has been filed nor anybody from the jail department has appeared. Ct. Balwan Singh no. 2874, Police Line Commissionerate Jodhpur has been sent but he is not in a position to say anything. Therefore, a fresh notice to Superintendent Jail Jodhpur be issued with direction to file a detailed reply explaining reasons for non production of the accused failing which it shall be presumed that he has nothing to say on this issue and he would be liable for further appropriate proceedings against him. A copy of the show cause notices be given dasti to HC Karnidan Singh and Ct. Balwan Singh for delivery quarter concerned and the same be sent through Director General, Prison, Rajasthan.

Now, fresh production warrants be issued to Superintendent Jail Jaipur for production of accused Priyanka Modi, Rajeshwar Singh, Vaibhav Lodha, Bharat Das Vaishnav, Rohit Modi, Bharat Modi, Vivek Purohit, Virender Modi, Ishwar Singh Sindal for 16.04.2021.

Production warrants be issued to Superintendent Jail Jodhpur for production of accused Mukesh Kumar Modi, Rahul Virender

Modi for 16.4.2021.

Accused Vijay Jhindal not produced as he is stated to be admitted in GH, Gurugram. Report with regard to accused Vijay Jhindal be called from CMO, Gurugram for date fixed.

(Dr.D.N.Bhardwaj)
Additional Sessions Judge,
Gurugram. UID NO.HR-0100
02.04.2021

Chandani
Stenographer-II